

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Carlmais Johnson	Team: Team # 5	CCRB Case #: 200605012	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 04/18/2006 7:20 PM	Location of Incident: East 143rd Street and Third Avenue	18 Mo. SOL 10/18/2007	Precinct: 40
Date/Time CV Reported Wed, 04/19/2006 2:07 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 04/19/2006 2:07 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Robin Crucey	28688	938293	040 PCT
2. POM Carlos Barahona	07961	938023	040 PCT
3. POF Janette Vargas	23281	939635	040 PCT
4. POM Efrain Morales	13473	939070	040 PCT
5. POM Justin Parris	22965	937249	040 PCT
6. POM Brian Query	06987	937315	040 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Johanny Reyes	07587	939298	040 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Brian Query	Abuse: Officer Brian Query threatened to arrest § 87(2)(b) and individuals.	A . Exonerated
B . POM Brian Query	Abuse: Officer Brian Query stopped and questioned § 87(2)(b)	B . Exonerated
C . POM Brian Query	Force: Officer Brian Query used physical force against § 87(2)(b)	C . Exonerated
D . POM Justin Parris	Force: Officer Justin Parris used physical force against § 87(2)(b)	D . Exonerated
E . POM Robin Crucey	Force: Officer Robin Crucey used physical force against § 87(2)(b)	E . Exonerated
F . POM Efrain Morales	Force: Officer Efrain Morales used physical force against § 87(2)(b)	F . Exonerated
G . POF Janette Vargas	Force: Officer Janette Vargas used physical force against § 87(2)(b)	G . Exonerated
H . POM Carlos Barahona	Abuse: Officer Carlos Barahona stopped and questioned § 87(2)(b)	H . Complainant Unavailable

Synopsis

On April 19, 2006, at approximately 7:20 p.m., several officers responded to East 143rd Street and Third Avenue in the Bronx in regards to an altercation at the location. Among these officers were Officer Justin Parris, Officer Brian Query, Officer Robin Crucey, Officer Carlos Barahona, Officer Efrain Morales and Officer Johanny Reyes, of the 40th Precinct. § 87(2)(b) was arrested for § 87(2)(b). § 87(2)(b) alleged that Officer Query threatened to arrest him, his friend, § 87(2)(b) and other members of the crowd if they did not leave the area (Allegation A) and that Officer Query later stopped him and requested his identification (Allegation B). PO Query stated that Officer Query and other officers used physical force against him to place him in handcuffs (Allegation C, Allegation D, Allegation E, Allegation F and Allegation G). § 87(2)(b) alleged that after § 87(2)(b) was arrested, Officer Barahona stopped him and falsely claimed that he had informed him to leave the area (Allegation H). § 87(2)(b) was ultimately issued two summonses for § 87(2)(b).

§ 87(2)(b), § 87(2)(g)

Summary of Complaint

§ 87(2)(b) a § 87(2)(b) year old male who is § 87(2)(b) provided a brief telephone statement on April 25, 2006 (encl. 4) and was interviewed at the CCRB on May 4, 2006 (encl. 5A-5G). § 87(2)(b)'s telephone statement was identical to his sworn statement, with one minor discrepancy noted below.

On the afternoon of April 18, 2006, § 87(2)(b) drove from work with § 87(2)(b) whom he considered to be a friend. § 87(2)(b) parked his vehicle on East 143rd Street and Third Avenue in front of or across the street from 325 East 143rd Street. He observed a fight in front of a nearby New York City Housing building between a few girls and approached to see what was going on. He explained that he thought his two brothers might be involved; they were not involved. § 87(2)(b) later clarified that he did not observe the fight as it was already over when he arrived.

At approximately 5:55 p.m., two minutes after he arrived, five or six uniformed officers responded to the scene where approximately 40 people, whom he described as "loud," had gathered. An officer, whom he described as a black male, 5'5" in height with a heavy build with curly black hair, stood two feet away from § 87(2)(b). This officer has been identified via investigation as Officer Brian Query. Officer Query addressed the crowd, saying, "Everybody clear the street! Everybody clear the street! We're gonna lock you up or we're gonna give you summonses." § 87(2)(b) looked at Officer Query but denied actually saying anything to him.

§ 87(2)(b) and § 87(2)(b) walked across the street and stood in front of a building. § 87(2)(b) was speaking with § 87(2)(b) when at least five officers walked towards him. In his telephone statement he reported that eight officers approached him. Officer Query told § 87(2)(b) "Let me see your I.D." Later in his statement, § 87(2)(b) reported this statement as "Shut up and show me your I.D." § 87(2)(b) did not produce the documentation and instead asked Officer Query why he needed to see his identification and why were they harassing him. Officer Query repeated his request for the identification. When Officer Query made the second request, § 87(2)(b) used his mobile phone to call his father to ask him to come to the location because he "knew that the situation was going to escalate." He tried to look at the officers' badge numbers because he knew that they were committing misconduct and initially alleged that Officer Query covered his badge number. He then clarified that Officer Query did not cover his badge and that he grabbed him by his left biceps and pushed him face-first against a gate approximately one foot away. An unidentified officer grabbed his right arm. The officers struggled with § 87(2)(b) telling him

to get on the floor but denied that he struggled with them. § 87(2)(b) initially stated that all five officers dragged him to the ground. He additionally alleged that an officer, whom he described as a white male with a thin build, 5'7" in height and weighing 160 pounds with brown or blond hair, grabbed him from behind in a "headlock position" and pushed down on his neck, pulling him backwards and down towards the ground. He was in the headlock for about thirty seconds and denied that his breathing was restricted. § 87(2)(b) later stated that he fell to the ground on his own because he did not want the officers to continue touching him. The officers told him to place his hands behind his back. § 87(2)(b) again denied that he struggled with the officers and stated that he placed his hands behind his back of his own volition. § 87(2)(b) described the scene as chaotic and stated that the crowd questioned the officers when they stopped him, and that the crowd's protestations escalated to screaming during the struggle. He noted that he heard the sound of glass breaking against the ground. § 87(2)(b) stated that he was on the ground for 20 minutes. He was handcuffed. Officer Query and Officer Parris lifted him from the ground and placed him into a marked police vehicle.

As the officers transported him to the 40th Precinct, § 87(2)(b) obtained Officer Parris' name from his shield. During the drive, Officer Query began to complain that his head hurt and accused § 87(2)(b) of having punched him in the face but § 87(2)(b) denied this action. The interaction with police caused his arm, on which he had previously had surgery, to feel numb. He did not obtain medical attention because he did not want to slow his process through the criminal system and never saw a private doctor in regards to this pain.

Results of Investigation

Witness Statement

§ 87(2)(b)
On April 19, 2006, § 87(2)(b) a § 87(2)(b) old male, filed his complaint with the Civilian Complaint Review Board via telephone and provided a brief statement (encl. 3A-3B). The undersigned investigator sent Please Call letters to § 87(2)(b) on April 21, April 28, May 16, May 23 and June 21, 2006. Calls were made to his home on April 25, May 2, May 3, May 9, May 16, May 17 and May 19, 2006 and messages were left with respondents on four occasions (encl. 18A-18G). However, to date § 87(2)(b) has not responded to the undersigned investigator's attempts to contact him.

On April 18, 2006, § 87(2)(b) and his friend, § 87(2)(b) § 87(2)(b) were walking from work on 144th Street and Third Avenue when they saw a group of girls engaged in a physical altercation. § 87(2)(b) crossed the street to avoid the altercation and § 87(2)(b) walked in a different direction. As he was leaving, five officers arrived at the location. Some of the officers ran to § 87(2)(b) and asked for his identification. When § 87(2)(b) asked the officers why they needed this information, an officer replied, "Don't ask me for nothing. Get on the wall. Gimme your fucking I.D." § 87(2)(b) produced his identification. § 87(2)(b) alleged that the five officers grabbed § 87(2)(b) and slammed him on the ground. While § 87(2)(b) was on the ground, officers kicked him and kneed him in the back. § 87(2)(b) did not attempt to strike the officers. § 87(2)(b) was handcuffed and arrested.

Five officers, whom § 87(2)(b) identified as Officer Crucey with shield number 28688, Officer Barahona with shield number 7961, Officer Morales with shield number 13473, Officer Vargas with shield number 23281 and Officer Reyes with shield number 7587, approached him. He noted that Officer Vargas and Officer Reyes were female. Officer Barahona approached § 87(2)(b) and claimed that he had previously asked § 87(2)(b) to leave the area. § 87(2)(b) denied that Officer Barahona had directed him to leave. When § 87(2)(b) asked if he could leave, Officer Barahona informed him that he could not because he was going to issue him a summons for refusing to leave the area. As Officer Barahona wrote the summons, § 87(2)(b) recorded the names and shield numbers of the officers. After a few minutes, Officer Barahona issued him Summons # § 87(2)(b) for § 87(2)(b) § 87(2)(b) began to walk away and Officer Barahona stopped him again and issued him a second summons, Summons # § 87(2)(b) for § 87(2)(b)

Witnesses Not Interviewed

§ 87(2)(b)

§ 87(2)(b) stated that his friend, § 87(2)(b) witnessed his interaction with the police. However, he could not provide any contact information for him. No listing could be found for § 87(2)(b) in the Metro-Search database (encl. 17A-17B).

§ 87(2)(b)

Officer Janette Vargas indicated that she issued a summons to § 87(2)(b) who remained at the scene after § 87(2)(b) was arrested. The undersigned investigator mailed a letter to § 87(2)(b) on June 8, 2006. On June 13, 2006, § 87(2)(b) mother of § 87(2)(b) contacted the undersigned investigator. § 87(2)(b) stated that she did not want her § 87(2)(b) old son to participate in the investigation. When the undersigned investigator explained that she will not be conducting an investigation into § 87(2)(b) activities, just into an incident he may have witnessed, § 87(2)(b) indicated that she might discuss the matter with § 87(2)(b) and call the undersigned at some later point. She refused to leave any additional contact information. An additional contact letter was mailed to the home on June 21, 2006 (encl. 18A-18G) but § 87(2)(b) never contacted the undersigned investigator.

Police Officer Statements

Officer Justin Parris, of the 40th Precinct (Subject Officer)

Officer Brian Query, of the 40th Precinct (Subject Officer)

Officer Justin Parris, a black male 5'8" in height and weighing 175 pounds, was interviewed at the CCRB on June 2, 2006 (encl. 6H-6J). Officer Brian Query, a Hispanic male 5'5" in height and weighing 200 pounds, was interviewed at the CCRB on July 5, 2006 (encl. 12A-12B). Both officers have been members of the NYPD for one year. On April 18, 2006, Officer Parris and Officer Query were assigned to Impact Auto and worked with one another. As their statements were similar to one another, they have been combined with differences noted below.

Officer Justin Parris had several entries in his memo book regarding this incident (encl. 6A-6C). He received a radio report of a dispute at the corner of 143rd Street and Third Avenue at 7:20 p.m. and arrived at the location at 7:22 p.m. At 7:26 p.m., he made one arrest. He had additional notations in his memo book and on his fly page regarding the processing of this arrest. Officer Query did not provide a copy of his memo book at the time of his CCRB interview.

Officer Parris completed Arrest Report § 87(2)(b) (encl. 6D-6E) and Complaint Report § 87(2)(b) (encl. 6F-6G) pertaining to the arrest of § 87(2)(b). Officer Parris stated that "At [time and place of occurrence] while attempting to issue a criminal court summons, defendant became agitated at which point he did strike [arresting officer]'s partner with a closed fist causing substantial pain and swelling to right side of face. While attempting to subdue defendant, arresting officer's partner did suffer injury to left knee and removed to § 87(2)(b) for treatment." The complaint report contained an identical statement. § 87(2)(b) was charged with § 87(2)(b). On the arrest report, Officer Parris noted that physical force was used against § 87(2)(b) and listed the reason as to "overcome assault."

On April 18, 2006, at approximately 7:22 p.m., Officer Parris and Officer Query respond to a report of a dispute at the corner of East 143rd Street and Third Avenue. They were the first to arrive at the location and were joined by Officer Efrain Morales, whom Officer Parris indicated was the only other officer to respond to the dispute. The officers told the crowd to disperse and everyone started to leave except § 87(2)(b). The officers repeated their request and § 87(2)(b) walked away with one or two other people. Officer Parris stated that § 87(2)(b) said, "Fuck the police", "Fuck you, pigs" and other similar statements. Officer Query indicated that § 87(2)(b) refused to leave and said, "There's no reason I have to leave", "Fuck this" and, "I don't have to listen to you." Officer Query stated that the crowd responded to the comments by laughing, becoming excited and remaining at the scene; he described § 87(2)(b)'s actions as tantamount to inciting a riot. Officer Parris and Officer Query requested § 87(2)(b)'s identification and explained that he was going to issue him a summons for disorderly conduct. § 87(2)(b) exclaimed, "Fuck that, I'm not giving you my I.D." Conversely, Officer Query indicated that § 87(2)(b) taunted the officers by showing them his identification but refusing to hand it to them, saying, "This is as

close as you're going to get to my I.D." When § 87(2)(b) refused to provide his identification despite repeated requests, the officers decided to place him under arrest.

Officer Query attempted to grab § 87(2)(b)'s arm but § 87(2)(b) moved away. § 87(2)(b) then punched Officer Query on the left side of his face, causing him to move backwards. Officer Parris grabbed § 87(2)(b)'s arms to restrain him as § 87(2)(b) attempted to throw another punch. Officer Parris stated that he, Officer Query and Officer Efrain Morales held § 87(2)(b)'s hands together so that they could place him in handcuffs; he did not recall that any other officers were involved in the struggle. Officer Query could not recall whether additional officers were involved in this struggle. § 87(2)(b) resisted their efforts by swinging his arms and swinging the officers around. Officer Parris explained that there was a four-foot gate at the location, but denied that § 87(2)(b) was ever placed against this gate. During the struggle, § 87(2)(b) struck Officer Query in the face with his elbow. Officer Query denied being struck in the face for a second time. As the officers attempted to place § 87(2)(b) on the ground so that they could handcuff him, Officer Query fell and twisted his knee. Officer Parris did not recall whether § 87(2)(b) was placed in a headlock. The officers were ultimately able to pull § 87(2)(b) to the ground and placed him in handcuffs. Throughout the struggle, the officers told § 87(2)(b) "Give me your hands."

An unidentified officer transmitted a request for assistance because members of the crowd began to throw glass bottles at the officers during the incident; numerous officers, including Sergeant Michael O'Brien responded. Sergeant O'Brien directed Officer Parris and Officer Query to leave the scene immediately with § 87(2)(b) to prevent a riot. Officer Parris and Officer Query, who was limping, walked § 87(2)(b) to a nearby marked police vehicle and transported him to the 40th Precinct stationhouse. During the transport, § 87(2)(b) apologized to the officers and explained that he had been recently arrested for assault. An ambulance was later called to the stationhouse to treat Officer Query for the bruises to his face and an injury to his knee; Officer Query ultimately received treatment at a hospital.

Officer Janette Vargas, of the 40th Precinct (Subject Officer)

Officer Janette Vargas, a § 87(2)(b) had memo book entries regarding her arrival at the location in response to a radio report at 7:22 p.m. and a summons she issued (encl. 7A-7D). Officer Vargas has been a member of the NYPD for one year. An entry at 7:40 p.m. indicates that Officer Vargas stopped one male, § 87(2)(b) of § 87(2)(b), and issued him a summons for failure to disperse.

Officer Vargas was interviewed at the CCRB on June 7, 2006 (encl. 7E-7F). On April 18, 2006, Officer Vargas worked by herself at a foot post on Alexander Avenue between East 141st Street and East 143rd Street.

When Officer Vargas responded to the report of a dispute at East 143rd and Third Avenue, she observed an ongoing fight. Also present were Officer Parris and Officer Query. Officer Vargas began to disperse a large crowd that had gathered to watch the fight. Officer Vargas stated that she then saw Officer Query on the ground, though she could not say how he came to be in this position. Officer Parris was with a black male, identified via investigation as § 87(2)(b) and was repeatedly requesting his identification, which § 87(2)(b) refused to provide. She did not recall that § 87(2)(b) was speaking on a cell phone or that he made any statements regarding calling Internal Affairs or the CCRB. Officer Parris asked § 87(2)(b) to turn around but he refused to do so. Although she could not see what Officer Parris did, she observed § 87(2)(b) resisting arrest. Officer Parris, Officer Query, Officer Vargas, and Officer Morales helped to restrain § 87(2)(b). Officer Vargas held § 87(2)(b)'s hands to place him in handcuffs. Officer Vargas denied that § 87(2)(b) was ever placed against the gate. § 87(2)(b) was brought to the ground, where the officers were able to place him in handcuffs. She had no recollection that any officer placed him in a headlock. Officer Crucey, Officer Morales and Officer Parris issued summonses to individuals who remained at the scene in spite of the initial directives to disperse. Officer Vargas issued a summons to § 87(2)(b).

Officer Efrain Morales, of the 40th Precinct (Subject Officer)

Officer Efrain Morales, a § 87(2)(b) who has worked for the NYPD for one year, had two notations in his memo book regarding this incident (encl. 8A-8B). He had one notation at 7:35 p.m.

regarding the dispute at the location and a notation at 7:40 regarding an arrest made by Officer Parris. At 7:41 p.m., he resumed patrol.

Officer Morales, who worked at an unknown foot post by himself, was interviewed by the CCRB on June 7, 2006 (encl. 8C-8D). He provided a statement that was identical, though significantly less detailed, than that of Officer Vargas with only one major difference. Officer Morales stated that he, Officer Vargas and Officer Crucey restrained § 87(2)(b) so that Officer Parris could place him in handcuffs.

Officer Robin Crucey, of the 40th Precinct (Subject Officer)

Officer Robin Crucey, a § 87(2)(b), had two memo book notations regarding the incident (encl. 9A-9B). Officer Crucey has one year of service with the NYPD. He received a report of the dispute at 7:22 p.m. and at 7:35 p.m., he noted that there was an arrest made by Officer Parris.

Officer Crucey was interviewed at the CCRB on June 7, 2006 (encl. 9C-9D). On April 18, 2006, Officer Crucey was assigned to a foot post on Melrose Avenue between East 149th Street and East 151st Street. His statement was similar to those of the officers above, with discrepancies noted.

When Officer Crucey arrived at the location he heard § 87(2)(b) arguing loudly with Officer Parris and Officer Query. Officer Crucey approached and stood to the left of Officer Parris. Officer Query then fell to the ground, though Officer Crucey could not say how this happened beyond noting that § 87(2)(b) was in close proximity when it occurred. Officer Crucey grabbed § 87(2)(b)'s arm. § 87(2)(b) flailed his arm and shouted at the officers to get off of him. Officer Crucey then returned to his post and had no recollection of observing anyone receive a summons.

Officer Carlos Barahona, of the 40th Precinct (Subject Officer)

Officer Carlos Barahona, a § 87(2)(b), had two memo book entries regarding the two summonses he issued (encl. 10A-10C). Officer Barahona, who has one year of service with the NYPD, noted that he issued a summons for § 87(2)(b) and a summons for § 87(2)(b). There is no indication of the recipient of these summonses.

Officer Barahona completed two summonses, Summons § 87(2)(b) and Summons § 87(2)(b) for § 87(2)(b) and § 87(2)(b) respectively (encl. 10D). The majority of the summons, specifically the section containing the recipient's information, is illegible.

Officer Barahona was interviewed at the CCRB on June 9, 2006 (encl. 10E-10F). On April 18, 2006, Officer Barahona was assigned to a foot post on Willis Avenue between East 141st Street and East 143rd Street.

Officer Barahona explained that he completed a previous job at 7:25 p.m. When he arrived at East 143rd Street and Third Avenue, he learned that an arrest had been made at the location. He, Officer Morales, Officer Crucey, Officer Vargas and possibly additional officers approached a group that was gathered on another corner and asked them to leave. Officer Barahona then approached a male, identified via investigation as § 87(2)(b) and requested his identification. § 87(2)(b) complained "Why are you harassing me" and stated that he thought the situation was "fucked up." § 87(2)(b) also indicated that the arrested individual was his friend. Officer Barahona replied, "You were told to leave the block. You refused to leave the block." He issued § 87(2)(b) a summons for § 87(2)(b) and told him to leave. § 87(2)(b) took the summons and walked away, jaywalking across the street. Officer Barahona issued him an additional summons for § 87(2)(b). § 87(2)(b) left the scene.

Officer Johanny Reyes, of the 40th Precinct (Witness Officer)

Officer Johanny Reyes, a § 87(2)(b), had only two entries in her memo book regarding a radio report of a dispute and her arrival at the incident location at 7:25 p.m. (encl. 11A-11B). Officer Reyes, a member of the NYPD for one year, was interviewed at the CCRB on June 22, 2006 (encl. 11C-11D).

When Officer Reyes arrived at East 143rd Street and Third Avenue at approximately 7:22 p.m., additional officers were present. However, she remained to assist in handling the crowd of over twenty people. She denied that she observed any physical altercation. She did not observe any officers issue any summonses to members of the crowd nor did anyone request her name or shield number.

Police Documents

Sprint report T10872 indicates that at 7:25 p.m., there was a call for assistance at East 143rd Street and Third Avenue (encl. 13A-13B). At 7:26 p.m., a foot post made an arrest. At 7:26 and 7:27 p.m., a sergeant requested that no further units respond to the location and noted that there were no injuries to any officers.

The 40th Precinct Command Log indicates that § 87(2)(b) arrived at the 40th Precinct stationhouse at 7:35 p.m. after being arrested by Officer Parris at 7:25 p.m. (encl. 14). He was listed as being in apparently normal condition.

The undersigned investigator sent two requests to the NYPD Monitoring and Analysis Section requesting the Aided report regarding Officer Query's transport to § 87(2)(b) Hospital for medical treatment (encl. 20B-20C). Both requests, one of which included an Aided number obtained from the complaint report, were returned with an indication that there were negative results. A request to Internal Affairs for Line of Duty paperwork was returned with an indication that no such paperwork was on file (encl. 20D).

§ 87(2)(b)

Summons Disposition

§ 87(2)(b) [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] § 87(2)(b) (encl. 18G).

CCRB Histories

Officer Brian Query, Officer Justin Parris, Officer Robin Crucey, Officer Efrain Morales, Officer Janette Vargas and Officer Carlos Barahona have never had any substantiated CCRB allegations in their one-year tenures with the NYPD (encl. 2A-2F).

Neither § 87(2)(b) nor § 87(2)(b) has filed a prior complaint with the CCRB (encl. 2G-2H).

Conclusions and Recommendations

Officer Identification

§ 87(2)(b) described the officer that threatened to arrest him and members of the crowd (Allegation A) and later stopped him (Allegation B) as a black male, 5'5" in height with a heavy build and black hair. He also indicated that this officer claimed to be injured as a result of the physical interaction.

§ 87(2)(b) alleged that this officer also initiated physical contact with him by grabbing his arm (Allegation C). Officer Query, who reported bruises to his face and an injury to his knee after struggling with § 87(2)(b) also affirmed that he was the first officer to make physical contact with § 87(2)(b).

§ 87(2)(g) additionally described three officers—a white female officer, approximately 5'6" in height with a thin build, a white male officer with brown hair and a male—and stated that these officers were in his vicinity at

